Arkansas Planning Guide for AI: Data and Student Privacy Passages

Excerpted verbatim from *Planning Guide for AI: A Framework for School Districts (Virtual Arkansas / Virtual Learning Leadership Alliance, in collaboration with Michigan Virtual; modified from the Michigan Virtual original, © 2023 Michigan Virtual University)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Because the guide repeats privacy and security themes across many sections and appendices, each appearance is quoted in its own section. Printed page numbers match the PDF page numbers.

AI Integration Framework Rubric: Policy, Ethical, & Legal Considerations (excerpt)

Source: page 6 [graphic]

[graphic] Implementing

[graphic] The district is establishing policies, reviewing ethical guidelines, and strengthening a legal framework to address the challenges associated with AI technologies, including student privacy, data protection, and responsible AI practices.

[graphic] Innovating

[graphic] The district has adopted Board-approved policies, robust ethical guidelines, and a strong legal framework, demonstrating a commitment to accountability, data privacy, compliance, and continuous improvement in AI.

AI Integration Framework Rubric: Student Use (excerpt)

Source: page 6 [graphic]

[graphic] Innovating

[graphic] Most students utilize AI to support their learning goals, critically assessing AI's societal impact, including biases, privacy concerns, and fairness issues, while making informed judgments about the authenticity and origin of content.

Address Potential Concerns (excerpt)

Source: page 9

Integrating AI may generate concerns within the school community, including fears related to student plagiarism or cheating. Other concerns may include fears of job displacement, ethical considerations, data privacy, and biases in AI algorithms.

Policy, Ethical, & Legal Considerations

Source: page 12

School leaders must prioritize policy, ethics, and legal considerations when integrating AI into educational practices to create a safe, effective, and inclusive learning environment. Understanding relevant laws, ethical concerns, compliance with data protection regulations, and engaging legal expertise is crucial to protect stakeholders' interests and mitigate potential risks associated with AI integration.

Develop Policies and Guidelines

Establishing comprehensive policies and guidelines is essential for systematically addressing the ethical, legal, and data privacy dimensions of AI usage. … They should also address data privacy, informed consent, algorithmic transparency, and accountability issues. By developing clear policies, districts can provide guidance to educators, students, and other stakeholders, ensuring responsible and ethical AI use.

Address Legal Risks and Challenges; Potential Risks

Source: page 13

Integrating AI in educational environments brings potential legal risks and challenges that must be proactively addressed. These may include concerns regarding data privacy and security accessibility and the impact of AI on district employment and workforce dynamics. Engaging in risk assessment and mitigation strategies is essential to safeguard students' privacy and ensure the responsible and unbiased use of AI technologies.

- If schools lack proper vetting and oversight, they may be at risk of unauthorized access, data breaches, or misuse of sensitive information, compromising the privacy and security of students and staff.

Professional Learning: Empower Educators to Integrate AI Ethically (excerpt)

Source: page 18

Professional development programs should explore ethical considerations related to AI, such as privacy, bias, and responsible AI use.

Student Use: Establish Expectations for Ethical AI Use (excerpt)

Source: page 21

This can include discussions on privacy, bias, and the responsible use of AI tools. By providing clear guidelines, students can develop a sense of digital citizenship and responsible AI usage.

Student Use: Potential Risks (excerpt)

Source: page 21

- Districts should avoid the perception of overreliance on AI tools or of constant monitoring by AI systems with which students interact, which could create stress, anxiety, or a sense of surveillance.

Conclusion (excerpt)

Source: page 26

This should include the development of comprehensive policies, guidelines, and legal frameworks to ensure the responsible and unbiased use of AI while also prioritizing equity, data privacy, and valid assessments.

Appendix A: Policy Considerations (excerpt)

Source: page 28

Districts will likely need to implement policies that address or take into consideration the following questions:

- What data will be collected, and how will it be used and protected? School board members must inquire about the types of data AI systems will collect and ensure adequate data protection measures are in place.
- What privacy protocols are in place to protect student and staff data? Policies concerning privacy measures will help leaders assure the community that data security is a top priority.
- What processes will be in place for stakeholders to demonstrate consent for use of these tools? Develop guidelines for obtaining informed consent from students and parents when using AI technologies that may collect personal data or make decisions impacting students' educational journeys.

Appendix B: Recommended Language for Existing AUP (excerpt)

Source: page 30

- **Policy Statement: Responsible Use of AI:** Users must use AI technologies in a responsible and ethical manner, respecting the rights and privacy of individuals and ensuring compliance with applicable laws and regulations.
- **Data Privacy and Security:** Users must protect the privacy and security of personal and confidential data when using AI tools. It is important to ensure that any data collected or processed by AI technologies are securely stored, transmitted, and used in accordance with relevant data protection laws and district policies.
- **Ethical Considerations:** Users must consider the ethical implications of AI technologies, including issues related to privacy, consent, dignity, and the well-being of individuals.
- **Compliance with Existing Policies:** The use of AI technologies must comply with all existing district policies, including but not limited to the AUP, data privacy policies, and student code of conduct.

Appendix B: Recommended Language for Existing AUP, Closing (excerpt)

Source: page 31

This addendum seeks to balance the benefits of AI integration with the safeguarding of student privacy, fairness, and transparency.

Appendix C: Policy, Ethical, & Legal Considerations, Key Action Considerations for Educators (excerpt)

Source: page 33

- **Establish Ethical Guidelines and Policies for AI Use:** … Educators should advocate for privacy protection, data security, transparency in algorithmic decision-making, and mitigating bias in AI systems.
- **Promote Digital Citizenship and Responsible AI Use:** … Educators should engage students in discussions about privacy, bias, fairness, and the responsible use of AI technologies.

Appendix C: Discussion Prompts for Local Planning (excerpt)

Source: page 34

- What policies, guidelines, and legal considerations should be in place to address the ethical, legal, and data privacy dimensions of AI usage?

Appendix C: Student Use, Promote Ethical AI Use (excerpt)

Source: page 37

- **Promote Ethical AI Use:** Educators should establish guidelines and promote ethical AI use among students. This includes discussing responsible practices, privacy considerations, and the potential biases and limitations of AI algorithms.

Appendix C: Business & Technology Operations (excerpt)

Source: page 39

- **Ensure Technology Ecosystem Can Support AI:** … If needed, they should make updates to the networking infrastructure, devices, software, and data security measures needed to support AI integration for educational purposes as well as for business operations.

Appendix D: Portrait of AI Integration, Policy, Ethical, & Legal Considerations (excerpt)

Source: page 41

- Educators and staff members are knowledgeable about their responsibilities regarding student data privacy and protection in the context of AI implementation.
- The district has robust data governance practices in place to ensure the responsible and secure use of AI-generated data.

Appendix D: Portrait of AI Integration, Business & Technology Operations (excerpt)

Source: page 43

- The district has systems in place to ensure the security and privacy of sensitive administrative data when using AI technologies.

Appendix E: AI Risk Assessment, Data Privacy and Security

Source: page 44

- Are robust data protection measures in place to safeguard sensitive student and staff data?
- Is regular security auditing conducted to identify and address vulnerabilities?
- Are clear policies and procedures established for data handling and consent?

Appendix F: Common Pitfalls, Leadership & Vision (excerpt)

Source: page 46

- **Underestimating the Importance of Data Governance:** Neglecting robust data governance practices can lead to data breaches, privacy violations, and misuse of student information. Implement clear policies and protocols for data collection, storage, usage, and protection to safeguard student privacy and maintain data security.

Appendix F: Common Pitfalls, Policy, Ethical, & Legal Considerations (excerpt)

Source: page 46

- **Overlooking Data Privacy and Security:** Neglecting data privacy and security can lead to breaches and violations of student privacy. Avoid collecting more data than necessary and ensure secure storage and handling of student information. Regularly review and update security protocols to align with evolving best practices.

Appendix F: Common Pitfalls, Assessments (excerpt)

Source: page 47

- **Disregarding Data Privacy and Security:** Prioritize the protection of student data and ensure compliance with relevant privacy laws and regulations. Use secure AI tools and platforms that safeguard sensitive information and adhere to data protection guidelines.

Appendix F: Common Pitfalls, Student Use (excerpt)

Source: page 48

- **Neglecting Privacy and Security:** Prioritize student privacy and data security when integrating AI tools and systems. Implement measures to protect students' personal information and ensure compliance with data protection regulations. Regularly review and update security protocols to safeguard student data.

Appendix F: Common Pitfalls, Business & Technology Operations (excerpt)

Source: page 49

- **Overlooking Data Privacy and Security:** Avoid neglecting data privacy and security considerations when implementing AI in business operations. Take proactive measures to protect sensitive student and staff information, ensuring compliance with relevant data protection regulations and industry best practices.

Appendix F: Common Pitfalls, Outreach (excerpt)

Source: page 49

- **Neglecting privacy and security:** Do not overlook the importance of addressing privacy concerns related to AI implementation. Clearly communicate data security measures and protocols.

Appendix G: Glossary of Terms, AI Ethics (excerpt)

Source: page 51

AI Ethics: The study and implementation of ethical principles in the design, development, and deployment of AI technologies. AI ethics in education ensures fairness, transparency, and privacy in AI-based educational solutions.